

While Defendant's claims ultimately failed, the arguments raised by his counsel appear to be based on her "innovative" reading of the law and zealous representation. (See, *Peake, supra*, 227 Cal.App.4th at 441.) While the Court did rule in Plaintiffs' favor, this is insufficient alone to support an award of sanctions pursuant to C.C.P. § 128.7. (See, *Kumar, supra*, 71 Cal.App.5th at 1121; *Peake, supra*, 227 Cal.App.4th at 448.)

Additionally, while Plaintiffs contend Defendant's actions were intended to require them to spend significant amounts of money, there is insufficient evidence that the motion was filed for an improper purpose. As sanctions awards are to be granted with restraint, and sanctions should not be routinely awarded even for a claim that is arguably frivolous, this motion is denied. (*Ibid.*)

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CASE #	CASE NAME	HEARING NAME
CVRI2501448	SANCHEZ vs GENERAL MOTORS LLC	MOTION TO COMPEL

Tentative Ruling:

Plaintiff's Motion to Compel as to RFP Nos. 3 and 28 is granted (the response to RFP No. 28 is limited to 2022 to present.)

The parties are ordered to meet and confer regarding the definition of Transmission Defect to establish a definition that is easily searchable.
The request for sanctions is denied.

RFP No. 3 requests all warranties issues by You or GM regarding the Subject Vehicle. Defendant responded that the request was nonsensical because it was intended for a different entity. "You" is defined to include Defendant as well as affiliated entities. (See Decl. of McCabe, Ex. A.) The warranties are clearly directly relevant to the breach of warranty claims. Apparently, Defendant is confused because the RFP appears to seek warranties issued by GM as well as other entities. However, the request expressly seeks warranties issued by GM. As such, Defendant must respond. If it does not have custody or control of documents held by the affiliated entities described in the definition, it should indicate the reason for the inability to comply as well as the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item. (CCP § 2031.230.)
Grant the Motion to Compel.

RFP Nos. 23, 40, 41, 42 and 46 seek complaints to GM and other entities regarding the Transmission defect in Sierra 1500 vehicles. Transmission Defect is defined as "such defect which result in symptoms, including but not limited to: a vehicle that "wants to jolt forward" when coming to a stop; internal binding of a 1-2-3-4-5 Reverse piston; sticking pistons during lowering; overheating and warping of clutch steels and friction plates; discoloration of internal harnesses; "consequential damage" to internal pistons and springs; and any other similar concerns identified by Plaintiff or in the repair history for the Subject Vehicle." (Decl. of McCaabe, Ex. A.)

Defendant objects on several grounds, including that the RFPs are vague, overbroad and not reasonably particularized. These objections are well taken. Similar complaint evidence may be relevant when limited to the specific problems experienced by the plaintiff. (See *Doppes v. Bentley Motors Inc.* (2009) 174 Cal.App.4th 967, 976-977, n. 2.) Furthermore, the information is relevant if limited to vehicles of the same year, make and model as the subject vehicle. (*Donlen v. Ford Motor Company* (2013) 217 Cal.App.4th 138, 154.) Here, the RFPs are not limited to the complaints involving 2022 vehicles. Thus, they are overbroad. Furthermore, the definition is unintelligible and does not appear to be readily searchable. Defendant should not be required to review other documents to determine the scope of the request. The parties must meet and confer to establish a workable definition for Transmission Defects.

RFP No. 28 requests documents setting forth GM's document retention policies from 2013 to present. Defendant objection on grounds that the request seeks privileged information and that the request is overbroad, unduly burdensome, vague, irrelevant, and fails to identify the information sought with reasonable particularity. Since there do not appear to be any allegations that GM failed to preserve or retain documents, the relevance of this request is minimal. Moreover, the scope dating back over ten years is excessive. As such, GM is required to provide a supplemental response including its document retention policies since the purchase of the Subject Vehicle.

SANCTIONS:

The court shall impose a monetary sanction against a party, person or attorney who unsuccessfully makes or opposes a motion to compel further responses to a demand for inspection or interrogatory unless it finds that the one subject to the sanction acted with substantial justification or other circumstances make the imposition of the sanction unjust. (CCP §2030.290(c); §2031.310(d).) "Whenever one party's improper actions even if not "willful"—in seeking or resisting discovery necessitate the court's intervention in a dispute, the losing party presumptively should pay a sanction to the prevailing party." (*Ellis v. Toshiba America Information Systems, Inc.* (2013) 218 Cal. App. 4th 853, 878.)

Plaintiff's request for sanctions is denied because Defendant's responses were substantially justified. The definition of Transmission Defect is vague and not reasonably particularized. It does not appear that Plaintiff engaged in a genuine, good faith effort to meet and confer regarding the definition and other issues raised by the Motion,

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CASE #	CASE NAME	HEARING NAME
CVRI2507279	SHAW vs SLICK'S INCORPORATED	MOTION TO SET ASIDE DEFAULT

Tentative Ruling:

Defendants UNOPPOSED Motion to Set Aside Default is granted.